

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Connie Villon	Team: Squad #08	CCRB Case #: 202409491	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 09/20/2024 7:20 PM	Location of Incident: Throgs Neck Bridge	18 Mo. SOL 3/20/2026	Precinct: 45		
Date/Time CV Reported Fri, 09/20/2024 9:34 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 09/20/2024 9:34 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO John Kupres	10342	966144	043 PCT
2. PO Santo Villar	01240	942673	043 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO John Kupres	Abuse: Police Officer John Kupres stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Within NYPD Guidelines
B . PO Santo Villar	Abuse: Police Officer Santo Villar stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants	B . Within NYPD Guidelines
C . PO Santo Villar	Abuse: Police Officer Santo Villar searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	C . Unfounded
D . PO Santo Villar	Abuse: Police Officer Santo Villar searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	D . Unfounded
E . PO Santo Villar	Abuse: Police Officer Santo Villar damaged § 87(2)(b) property.	E . Within NYPD Guidelines
F . PO John Kupres	Abuse: Police Officer John Kupres failed to provide § 87(2)(b) with a business card.	F . Substantiated
G . PO Santo Villar	Abuse: Police Officer Santo Villar failed to provide § 87(2)(b) with a business card.	G . Substantiated
§ 87(2)(g), § 87(4-b)		

Case Summary

§ 87(2)(b) filed this complaint with the CCRB via online website on September 20, 2024 (Board Review 01).

On September 20, 2024, at approximately 7:20 p.m., § 87(2)(b) was driving across the Throgs Neck Bridge into the Bronx with § 87(2)(b) in the front passenger seat. 43rd Precinct Police Officers John Kupres and Santo Villar stopped § 87(2)(b) vehicle for his tinted windows (**Allegations A and B: Abuse of Authority - Within NYPD Guidelines**). A Department of Motor Vehicles Investigator was called on scene by the officers to assist in the vehicle stop. PO Villar opened the right passenger door twice and allegedly searched the vehicle (**Allegations C and D: Abuse of Authority - Unfounded**). PO Villar cut out a tint exemption sticker from § 87(2)(b) rear passenger window, damaging the tints in the process (**Allegation E: Abuse of Authority - Within NYPD Guidelines**). PO Kupres and PO Villar did not offer a business card to § 87(2)(b) (**Allegations F and G: Abuse of Authority - Substantiated**). § 87(2)(g), § 87(4-b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) was not issued a summons or arrested as a result of this incident.

The investigation was provided with BWC footage from both PO Kupres and PO Villar (**Board Review 02 and 03**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer John Kupres stopped the vehicle in which

§ 87(2)(b) and § 87(2)(b) were occupants.

Allegation (B) Abuse of Authority: Police Officer Santo Villar stopped the vehicle in which

§ 87(2)(b) and § 87(2)(b) were occupants.

Allegation (C) Abuse of Authority: Police Officer Santo Villar searched the vehicle in which

§ 87(2)(b) and § 87(2)(b) were occupants.

Allegation (D) Abuse of Authority: Police Officer Santo Villar searched the vehicle in which

§ 87(2)(b) and § 87(2)(b) were occupants.

Allegation (E) Abuse of Authority: Police Officer Santo Villar damaged § 87(2)(b) property.

The CCRB interviewed § 87(2)(b) on September 26, 2024 (**Board Review 04**). On September 20, 2024, at approximately 7:20 p.m., on the Throgs Neck Bridge in the Bronx, § 87(2)(b) was driving home from work with his coworker, § 87(2)(§ 87(2)(b) § 87(2)(b) vehicle was a burgundy four-door sedan, and all the windows were tinted at five percent. § 87(2)(b) had an exemption sticker for the tinted windows issued by the DMV from about four or five years ago for his vehicle. As § 87(2)(b) drove over the bridge from Queens to the Bronx, he saw several marked police vehicles lined up on the right side of the bridge. § 87(2)(b) saw a marked police vehicle parked facing the highway, and he passed the vehicle. The marked vehicle then flashed its lights and pulled over § 87(2)(b) vehicle. PO Kupres approached his window, told him that he was pulled over because of his tints, and asked for his license and registration. § 87(2)(b) handed him the documents and told PO Kupres that he had an exemption sticker issued by the DMV for the tints, and that the exemption sticker was on the small window behind the rear passenger window. PO Kupres walked around the vehicle to inspect the sticker with PO Villar. PO Villar took out his flashlight, shined it on the exemption sticker, and repeatedly stated that the sticker was fake. § 87(2)(b) explained to both officers that the sticker was not fake and that it was issued by the DMV. A DMV Investigator, identified only as § 87(2)(b) then approached § 87(2)(b) vehicle.

Both PO Kupres and § 87(2)(b) returned to § 87(2)(b) window and told him that on their system it showed that he had an exemption with the DMV for the tinted windows. They were not going to issue him a summons, but that the sticker on his car looked fraudulent. § 87(2)(b) explained to PO Kupres his son had crashed his vehicle, the doors and windows of the vehicle needed to be replaced, and perhaps when the sticker was placed on the new window, it was damaged. He assured PO Kupres that it was the same exemption sticker that the DMV had first issued to him and showed the officers photos of when he received the stickers from the DMV. PO Villar continued to repeatedly yell that the sticker was fraudulent and that the sticker was issued to § 87(2)(b) wife and not to him. § 87(2)(b) explained that the exemption was issued to both of his vehicles and thus applied to him too. PO Villar then told § 87(2)(b) that he was going to cut out the sticker because it was fake. He then removed the sticker with a knife. PO Villar damaged the tint on the window by leaving a square cut out where the sticker was. No one told PO Villar to cut out the sticker; he did that on his own. PO Kupres explained to § 87(2)(b) that his sticker was removed because it looked “off.” § 87(2)(b) did not argue with the officers and had consented to them removing it. § 87(2)(b) provided her name and her contact number to § 87(2)(b) and told him that if he had any problems, to contact her and she would assist him. § 87(2)(b) thanked her and drove away. § 87(2)(b) did not request any officers’ business card, however, neither officer offered him one.

The CCRB interviewed § 87(2)(b) on September 27, 2024 (**Board Review 05**). § 87(2)(b) statement is consistent with § 87(2)(b) statement. § 87(2)(b) observed PO Villar open the left rear passenger door twice during the course of the vehicle stop.

The CCRB obtained PO Villar’s BWC footage of the incident (**Board Review 03**). It captured the incident in its entirety. At 00:59, PO Kupres approaches § 87(2)(b) vehicle from the right while PO Villar follows behind. At 1:42, PO Kupres tells PO Villar that § 87(2)(b) has a tint exemption sticker on the other side of the vehicle. It is stuck to the inside of the small, lower triangle window behind the rear passenger window. PO Villar looks at the sticker with his flashlight and states that the sticker is not real. § 87(2)(b) and PO Villar have a brief back and forth about whether the sticker is fraudulent or not. At 2:20, PO Villar calls for a DMV specialist to come to the scene and provides a description of the vehicle. At 3:35, § 87(2)(b) parks her vehicle behind their RMP and PO Villar explains the situation to her. At 4:09, both § 87(2)(b) and PO Villar walk back to the vehicle to inspect the sticker. At 4:23, they are examining the sticker from outside the vehicle and PO Villar tells § 87(2)(b) that the format is wrong and that the alignment is off. She asks when § 87(2)(b) was issued the exemption and takes a photo of the sticker. At 4:36, § 87(2)(b) shows a photo on his phone of when he received the exemption stickers from the DMV. § 87(2)(b) explains again that his son crashed his vehicle, and he had to replace the doors.

At 5:10, § 87(2)(b) is on her phone and says that “the pictures look good, but that does not look good.” At 5:56, § 87(2)(b) tells the officers that § 87(2)(b) could have been issued the sticker in the past. At 6:48, § 87(2)(b) asks PO Villar if she could see the inside of the sticker and PO Villar walks over to the left rear passenger door and tells § 87(2)(b) that he is going to open his door quickly, to which § 87(2)(b) says to go ahead. PO Villar opens the door and § 87(2)(b) inspects the back of the sticker. At 8:22, § 87(2)(b) explains that the exemption is registered to § 87(2)(b) wife, but § 87(2)(b) is a passenger. At 8:46, § 87(2)(b) says that § 87(2)(b) “was issued an exemption in 2021” and at 9:23 she is talking with someone over her phone and tells the officers that she does not think DMV issued that particular sticker. PO Kupres asks § 87(2)(b) if technically § 87(2)(b) was issued an exemption, and she states “yes”. At 10:06, PO Kupres again asks § 87(2)(b) if § 87(2)(b) has a tint exemption, which she affirms. PO Villar rebuts that it was § 87(2)(b) wife who was issued the exemption, not him. § 87(2)(b) replies that the car was issued an

exemption. At 10:15, § 87(2)(b) tells PO Kupres that the sticker needs to come off § 87(2)(b) car, because it was not issued by DMV. From 10:25 to 14:25, the rest of the video is consistent with PO Kupres' BWC from 10:25 to 14:39, where PO Kupres explains to § 87(2)(b) that on the DMV records it shows that he has a tint exemption but that the DMV told them the sticker on the vehicle is fraudulent and needed to be removed. He was not going to issue him a summons, however, because according to the DMV he had a tint exemption. From 10:37 to 10:54, PO Kupres opens the rear passenger door and PO Villar cuts out the sticker from the car. DMV § 87(2)(b) provides her contact information to § 87(2)(b) as the officers walk back to their RMP.

The investigation obtained PO Kupres's BWC footage of the incident and it is consistent with PO Villar's BWC footage (**Board Review 02**).

The CCRB interviewed PO Kupres on November 13, 2024 (**Board Review 06**). On September 20, 2024, at approximately 7:20 p.m., PO Kupres and PO Villar were part of a large-scale multi-agency operation on the bridge to address ghost cars (unregistered vehicles), suspended registered vehicles, vehicle equipment issues, and any other VTL violations on the Throgs Neck Bridge. NYPD, DMV, MTA, NYPD Highway, State Troopers, TBTA were some of the many agencies and organizations involved in the taskforce. This taskforce had been in effect for about six months, and on the date of the incident, the city decided that it would operate on the Throgs Neck Bridge. There was a License Plate Reader (LPR) car on site which flags license plates that are not registered. The driver of the LPR car would then call out the flagged license plates and any other VTL violation observations they made.

PO Kupres stated that he and PO Villar were informed over the radio by the LPR car that § 87(2)(b) vehicle had tinted windows. PO Kupres observed § 87(2)(b) vehicle and saw for himself that all of § 87(2)(b) windows were darkly tinted. The windows were excessively tinted, and he could not see into the vehicle. PO Kupres stated that it was both his and PO Villar's decision to stop § 87(2)(b) vehicle, but that it was his car stop. PO Kupres approached § 87(2)(b) from the passenger side, and asked for his license and registration, which § 87(2)(b) provided. He told PO Kupres that he had a tint exemption on the other side of his vehicle. PO Kupres and PO Villar both saw the tint exemption sticker. PO Villar spotted something that appeared to be incorrect on the sticker and called a DMV investigator to come to the scene and verify if the sticker was legitimate.

PO Kupres further stated that the DMV investigator arrived and took over the investigation into the sticker. She checked the DMV records and found that both § 87(2)(b) and his wife had exemptions. However, she said that the tint exemption on the vehicle at the time of the incident was fraudulent and that she wanted the sticker to be removed. The DMV investigator made the ultimate decision to have the sticker removed from the vehicle. When the DMV investigator determined that she wanted to confiscate the sticker, PO Kupres opened the rear passenger door and PO Villar removed the sticker from the window. PO Kupres did not search § 87(2)(b) vehicle and did not see PO Villar search it either. PO Kupres told § 87(2)(b) that he was not going to write him a summons because he had a tint exemption and wanted to give him the benefit of the doubt.

The CCRB interviewed PO Villar on November 13, 2024 (**Board Review 07**). PO Villar's statement was consistent with PO Kupres's statement.

Section 375 (12-a) of the NYS Vehicle and Traffic Law does not allow a windshield or front side windows that are dark. The windshield and front side windows cannot block more than 30% of the light. Seventy percent or more of the light from the outside must pass through the window. This law also applies to the rear window unless the vehicle has outside rear-view mirrors on both sides. The mirrors must give the driver a full and clear view behind the vehicle. Rear side windows

must also allow at least seventy percent of light from the outside to pass through the window if the vehicle is classified as a:

- station wagon
- sedan
- hardtop
- coupe
- hatchback
- convertible

A vehicle falls into one of these categories if it is labeled “Passenger Car” on the Federal ID label found on the left front door panel. It is illegal to sell, offer for sale, or install glass that does not comply with this law. It is illegal to operate a vehicle with glass that does not comply with this law (**Board Review 08**).

N.Y. Veh. & Traf. Law § 375 (c) states that “any person required for medical reasons to be shielded from the direct rays of the sun and/or any person operating a motor vehicle belonging to such person or in which such person is an habitual passenger shall be exempt from the provisions of subparagraphs one and two of paragraph (b) of this subdivision provided the commissioner has granted an exemption and notice of such exemption is affixed to the vehicle as directed by the commissioner. The applicant for such exemption must provide a physician’s statement with the reason for the exemption, the name of the individual with a medically necessary condition operating or transported in the vehicle, the specific condition involved, and the minimum level of light transmission required. The commissioner shall only authorize exemptions where the medical condition certified by the physician is contained on a list of medical conditions prepared by the commissioner of health pursuant to subdivision sixteen of section two hundred six of the public health law. If such [such]* exemption is granted, the commissioner shall make a record thereof and shall distribute a sufficiently noticeable sticker to the applicant to be attached to any window so shielded or altered pursuant to such exemption” (**Board Review 09**).

According to *Onderdonk v. State*, 170 Misc. 2d 155, officers must give due respect to property and may only damage property if doing so is “reasonably necessary” to carrying out their duties (**Board Review 10**).

It is undisputed that all of § 87(2)(b) vehicle windows were darkly tinted. § 87(2)(g) it is recommended that **Allegations A and B** be closed as **Within NYPD Guidelines**.

PO Villar’s BWC footage captured the incident in its entirety. The first time § 87(2)(b) rear passenger door was opened, PO Villar had asked § 87(2)(b) if it was okay for him to open it so that the DMV investigator could inspect the sticker more. § 87(2)(g) The second time § 87(2)(b) rear passenger door was opened, it was so that the officers could remove the sticker from the window. The officers did not search any part of the vehicle at any point. As such, it is recommended that **Allegations C and D** be closed as **Unfounded**.

The DMV investigator was called to the scene by PO Villar to verify the validity of the tint exemption sticker on § 87(2)(b) vehicle. As captured on BWC footage, The DMV investigator determined that the sticker was fraudulent and told the officers to remove the sticker before PO Villar cut out the sticker. § 87(2)(g)

§ 87(2)(g) it is recommended that **Allegation E** be closed as **Within NYPD Guidelines**.

Allegation (F) Abuse of Authority: Police Officer John Kupres failed to provide § 87(2)(b) with a business card.

Allegation (G) Abuse of Authority: Police Officer Santo Villar failed to provide § 87(2)(b) with a business card.

It is undisputed that neither PO Kupres nor PO Villar offered § 87(2)(b) a business card at the conclusion of this incident.

During PO Kupres's CCRB interview (**Board Review 06**) PO Kupres stated that he did not provide a business card to § 87(2)(b). He stated he was the contact officer and introduced himself to § 87(2)(b) when he made contact and assumed § 87(2)(b) did not need his business card because his name and shield number were displayed. § 87(2)(b) did not ask PO Kupres for a business card, however, had § 87(2)(b) asked for a business card, he would have provided a business card to him.

The CCRB interviewed PO Villar on November 13, 2024 (**Board Review 07**). To PO Villar's knowledge, he was not required to offer a business card to § 87(2)(b) in this situation. It was not his vehicle stop, but PO Kupres's. § 87(2)(b) did not ask for a business card, however, had § 87(2)(b) asked for a business card, PO Villar would have provided one to him.

According to New York City Administrative Code 14-174, officers are required to offer a business card to persons at the conclusion of any such law enforcement action that does not result in an arrest or summons (**Board Review 11**).

According to NYPD Administrative Guide 304-11, officers are required to provide right to know business cards upon the conclusion of law enforcement activities, except in cases when a summons is issued or an arrest is made, or exigent circumstances are present (**Board Review 12**).

According to NYPD Patrol Guide Procedure No. 203-09, when a uniformed member of the service interacts with a member of the public and/or concludes the described law enforcement activities, a right to know business card is offered upon the conclusion of the law enforcement activities, except in cases when a summons is issued or an arrest is made, or exigent circumstances are present (**Board Review 13**).

It is undisputed that the officers stopped § 87(2)(b) and that they did not offer him business cards after the car stop had concluded. § 87(2)(g)

§ 87(2)(g) it is recommended that **Allegations F and G** be closed as **Substantiated**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party **(Board Review 15)**.
- PO Kupres has been a member of service for six years and has been a subject in two CCRB complaints and five allegations, none of which were substantiated. § 87(2)(g)
- PO Villar has been a member of service for 18 years and has been a subject in 17 CCRB complaints and 47 allegations, of which 12 were substantiated.: **(Board Review 17)**
 - § 87(2)(g)
 -
 -
 - **202205614** involved substantiated allegations of Abuse of Authority – Vehicle Search against PO Villar. The Board recommended Formalized Training, and the NYPD has not yet imposed discipline. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- On November 15, 2024, a FOIL request was sent to the New York City Office of the Comptroller for any Notice of Claim being filed in regards to this incident **(Board Review 18)**.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 8

Squad No.:	<u>8</u>		
Investigator:	<u>Connie Villon</u>	<u>Inv. Connie Villon</u>	<u>11/18/2024</u>
	Signature	Print Title & Name	Date
Squad Leader:	<u>Ethan De Angelo</u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date
Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date